

25STCV30767 25STCV30767

County: los-angeles

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Case Number: 25STCV30767 Hearing Date: July 21, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

21, 2026 TRIAL

DATE: June 20, 2028

CASE: Maria Sonia Granados Vivas v. Catalina Partners, LP, et al.

CASE NO.: 25STCV30767

PLAINTIFF'S

MOTION TO QUASH DEFENDANT 6643 DE LONGPRE PARTNERS, L.P. SUBPOENAS FOR EMPLOYMENT, MEDICAL, INSURANCE,

AND BILLING, PHARMACEUTICAL, & RADIOLOGY RECORDS PURSUANT TO C.C.P. §§

1987.1 ET SEQ., AND 1985.3(g); REQUEST FOR SANCTIONS IN THE AMOUNT OF \$8,185.00

AGAINST

DEFENDANT 6643 DE LONGPRE PARTNERS, L.P. AND/OR IT COUNSEL OF RECORD, LAW OFFICES

OF SCOTT C. STRATMAN PURSUANT TO C.C.P. §§ 1987.2 ET SEQ. AND 2023.010 ET SEQ.

MOVING PARTY: Plaintiff

Maria Sonia Granados Vivas

RESPONDING PARTY: Defendant 6643

De Longpre Partners, L.P.

I. BACKGROUND

Plaintiff Maria

Sonia Granados Vivas ("Plaintiff") brings this premises liability action against defendants Catalina Partners LP and 6643 De Longpre Partners, L.P. ("DLP").

On April 16, 2026, Plaintiff filed this motion to quash four deposition subpoenas issued by DLP to Employers Preferred Insurance Company ("EPIC"), Cross Country Workforce Solution ("CCWS"), Grand Park Convalescent Hospital ("GPCH"), and El Floridita Bar Restaurant ("EFBR"). Plaintiff request sanctions against DLP and/or its counsel of record.

On June 2, 2026, DLP filed an opposition. DLP requests sanctions against Plaintiff.

On July 14, 2026, Plaintiff filed a reply.

II. LEGAL STANDARD

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands such as unreasonable violations of the right of privacy.¿ (Code Civ. Proc., § 1987.1.)¿

Monetary Sanctions¿

In making an order pursuant to motion made under¿subdivision (c) of Section 1987¿or under¿Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial

justification or that one or more of the requirements of the subpoena was oppressive.”² (Code of Civ. Proc. § 1987.2.)³

III. DISCUSSION

DLP seeks records from Plaintiff's employers, CCWS, GPCH, and EFBR, and Plaintiff's worker's compensation claim with EPIC. Plaintiff seeks an order quashing the subpoenas to CCWS, GPCH, and EFBR (the "Employer Subpoenas"), and to EPIC, on the grounds they violate Plaintiff's right to privacy and are overbroad. Additionally, as to EPIC, Plaintiff argues the EPIC subpoena violates the Insurance Information and Privacy Protection Act. The court begins by addressing the Employer Subpoenas.

A. Employer Subpoenas

The Employer Subpoenas seek the same categories of documents:

Documents and records, writings, limited to body parts: head, neck, right shoulder, left shoulder, low back, mid back, left knee, right knee, left leg, right leg, buttocks, headaches, including but not limited to, employment, payroll and applications for employment, work absence and incident reports, personnel records, pre-employment exam records and progress records, including attendance records, job description, employment obligations, duties, responsibilities work hours and schedule, personnel records, workplace accidents, pertaining to the employment of Maria Sonia Granados Vivas, DOB: 03/09/1967 from 03/16/2024 to the present.

On its face, the Employer Subpoenas are not overbroad. Rather, they seek documents which are directly relevant and tailored to Plaintiff's claimed injuries. Contrary to Plaintiff's position, the Employer Subpoenas do not seek Plaintiff's W2s or 1099s but simply "attendance records, job description, employment obligations, duties, responsibilities work hours and schedule, personnel records, workplace accidents" from 03/16/2024 to the present. Such documents are relevant to understand the extent of Plaintiff's alleged injuries, and her claim for general damages. Further, Plaintiff has

failed to carry her burden to establish her right to privacy outweighs DLP's interest in obtaining the information. As such, the burden does not shift to DLP to demonstrate the direct relevance of the requested documents.[1]

B.

EPIC Subpoena

The EPIC subpoena seeks the following:

Any and all insurance records, medical records, all writings, correspondence, billing, payments, claims, photographs, explanation of benefits (EOBs) and any other documents contained within the insurance file, pertaining to Maria Sonia Granados Vivas, DOB: 03/09/1967, Claim No. 2024020410, Date of Loss: 09/16/2024.

Like the Employer Subpoenas, the EPIC subpoena is not overbroad. The EPIC Subpoena seeks information on Plaintiff's worker's compensation claim for injuries to the same parts of her body at issue. Further, contrary to Plaintiff's position, Insurance Code section 791.13 permits discovery of her worker's compensation claim. Insurance Code section 791.13 provides, in part, that an insurance institution shall not disclose any personal or privileged information about an individual collected or received in connection with an insurance transaction unless the disclosure is with the written authorization of the individual or in response to a facially valid administrative or judicial order, including a search warrant or subpoena. (Ins. Code, § 791.13, subds. (a), (h); see also *Mead Reinsurance Co. v. Superior Court* (1986) 188 Cal.App.3d 313, 321 [discovery of insurance claim files may be conditioned on obtaining the written consent of the persons to whom the files relate].) Based on the express language of Section 791.13, Plaintiff's prior insurance claim can be discovered pursuant to court order. The court makes that order herein.

C. Monetary Sanctions

DLP request sanctions against Plaintiff. Given the court's ruling, the court finds sanctions are warranted. Accordingly, Plaintiff is ordered to pay sanctions in the requested sum of \$760.00.

IV. CONCLUSION

The motion to quash is DENIED. Plaintiff is ordered pay sanctions in the sum of \$760.00 within 20 days of this order.

Defendant is ordered to give notice, unless waived.

Dated: July 21, 2026

Brock T. Hammond

Judge of the Superior Court

[1] As the Court stated in *Williams v.*

Superior Court (2017) 3 Cal.5th 531, "Courts must [] place the burden on the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies, as Hill requires. What suffices to justify an invasion will, ..., vary according to the context. Only obvious invasions of interests fundamental to personal autonomy must be supported by a compelling interest.